

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

J. Long, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: August 22, 2025

TIME: 9:00 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.E.)**

LINE #	CASE #	CASE TITLE	RULING
LINE 8	23CV417549	KEVIN LU vs QUINCY WINSHIP et al	“P.C. 1054” Motion OFF CALENDAR. This civil action has been dismissed and all future court dates have been vacated. Thus, there is no basis for Plaintiff’s motion. In addition, criminal discovery motions under Penal Code § 1054 are not within the jurisdiction of the civil court.
LINE 9	21CV388190	First Point Oakmead, LLC vs MiaSole Hi-Tech Corp.	Motion for Attorney’s Fees & Costs Ctrl Click (or scroll down) on Line 9 for tentative ruling.
LINE 10	25CV456065	Hung Le vs Khung Tran	Motion for Trial Preference & Further Case Management Conference Ctrl Click (or scroll down) on Line 10 for tentative ruling.

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Calendar Line 3

Case Name: *K.W. v. County of Santa Clara, et al.*

Case No.: 21CV382524

Before the Court is Defendant County of Sonoma's (the "County") motion for judgment on the pleadings in its favor as to the Third Amended Complaint ("TAC") filed by Plaintiff K.W. ("Plaintiff" or "K.W.")

I. Background

This is an action for negligence for sexual abuse allegedly suffered by Plaintiff while in foster care in Sonoma and Santa Clara Counties. According to the allegations of the TAC, the defendants placed Plaintiff in foster care for approximately thirteen years, beginning in or about 1979. (TAC, ¶ 25.) Plaintiff and his sister, T.W., were initially placed with Howard Ratcliff and Patty Jo Ratcliff (collectively, the "Ratcliffs") in Santa Clara County. (*Id.*, ¶ 26.) In approximately 1989, the Ratcliffs relocated to Sonoma County with Plaintiff and his sister. (*Ibid.*)

Plaintiff alleges that during his placement with the Ratcliffs, which lasted approximately eleven years, he was repeatedly sexually assaulted and abused by the Ratcliffs, as well as by their biological son, Howard Radcliff, Jr. ("Howard Jr."). (TAC, ¶¶ 27- 31.) Plaintiff informed his social worker of the abuse but was left with the Ratcliffs and continued to suffer further sexual assault and abuse from them and Howard Jr. (*Id.* ¶ 32.) Plaintiff continued to be sexually abused until a report was made to Sonoma County law enforcement that such abuse was occurring in the residence. (*Id.*, ¶ 33.)

Plaintiff alleges that at all relevant times, the defendants knew, or in the exercise of reasonable care should have known that the foster home Plaintiff was assigned to was not safe and that it was foreseeable that he would be sexually assaulted or abused and subject to maltreatment in that placement. (TAC, ¶ 34.) The defendants nevertheless failed to act upon their actual or constructive notice of the foregoing, subjecting Plaintiff to further abuse.

Based on these allegations, Plaintiff initiated this action in May 2021 and, after several versions of the complaint, filed the operative TAC on February 9, 2024, asserting the following causes of action: (1) negligence (against Defendant County of Santa Clara); (2) negligence (against the County); and (3) negligence (against Does 3 through 90).

II. The County's Motion for Judgment on the Pleadings

A. Legal Standard

"A motion for judgment on the pleadings is analogous to a general demurrer. The task of this court is to determine whether the complaint states a cause of action. All facts alleged in the complaint are deemed admitted, and we give the complaint a reasonable interpretation by reading it as a whole and all of its parts in their context. We are not concerned with a plaintiff's possible inability to prove the claims made in the complaint, the allegations of which are accepted as true and liberally construed with a view toward attaining substantial justice." (*Lance Camper Manufacturing Corp. v. Republic Indemnity Co.* (1996) 44